

the Master to inquire, whether the Plaintiff can make a good title to the estate contracted for ; and, in case the Master shall find, that there are any incumbrances or outgoing's affecting or issuing out of the said estate, it was ordered, that the Master shall state, what such incumbrances or outgoing's are : and set a value thereon ; or ascertain, what may be a proper indemnity against the same.

The Master's Report stated, that the Plaintiff can make a good title : and that the tithes in *Lower Eatington* and *Fulready*, part of the estate contracted for, are charged with the payment of an annual fee-farm rent for the whole of the rectory of £6. 3s. 4d. ; also with the annual payment of £5 for the whole rectory, for the benefit of the poor of *Upper Eatington*, and other places ; making together £11. 3s. 4d. ; that the said tithes are also chargeable with the repairs of the chancel of the church of *Eatington* : but by a late Act of Parliament the Defendant is bound to build a new church ; in consequence of which the Plaintiff alleges, that the chancel cannot want any repair for many years to come ; that it appears by the deeds, that there are other charges and incumbrances, affecting the tithes : viz. a yearly pension of £3. 6s. 8d., and another of 10s. payable out of the whole rectory ; both [84] which the Plaintiff alleged have not been paid within 80 years, if ever.

The Report farther stated, that as to the charge of £11. 3s. 4d. a-year, actually paid, the Plaintiff proposes to allow 29 years purchase ; being the same number of years purchase to be paid by the Defendant to the Plaintiff for the tithes amounting to £323. 16s. 8d. ; which sum the Master set as the value of the said incumbrances ; and it was proposed, that, in case the Defendant refuses to accept the said allowance, the Plaintiff will indemnify the Defendant against the same by a charge on the lands, allotted to the Plaintiff in lieu of the tithes of *Upper Eatington*, or a competent part thereof ; containing in the whole 184 A. 1 R. 36 P. the whole let at an annual rent of 22s. 6d. *per acre* ; amounting to an annual rent of £217. 11s. ; and the Plaintiff proposes in like manner, out of the said lands, or a competent part thereof, to indemnify the Defendant against the said annual charges of £3. 16s. 8d. and the repairs of the chancel. The Master stated, that he approved the proposal.

On the 23d of *March* 1802, the cause was heard at the *Rolls* for farther directions ; when a specific performance was decreed ; and the Master was directed to compute interest upon the purchase-money ; and also on the sum of £320. 16s. 8d., allowed by the Plaintiff for the charges of £11. 3s. 4d. a-year ; and it was ordered, that on payment by the Defendant of the balance, the Plaintiff should execute a conveyance.(1)

(1) *Halsey v. Grant*, the preceding case. *Dyer v. Hargrave*, 10 *Ves.* 505 ; see the note, 1 *Ves. jun.* 226, *Calcraft v. Roebuck*.

[85] BOYD v. MILLS. *Nov. 3d, 4th, 1806.*

The effect of taking Exceptions, pending a Demurrer to discovery, is to admit the Demurrer. Plaintiff permitted to withdraw the exceptions, paying the costs, without prejudice.

A Motion was made by the Defendant, that a Demurrer should be struck out of the Paper ; having been set down by the Plaintiff, after exceptions taken to the answer ; and that the Plaintiff may be ordered to pay the costs of the application.

Mr. *Owen*, in support of the motion, contended, that the effect of taking exceptions is, that the demurrer to discovery is good ; and therefore the demurrer was set down irregularly.

The *Solicitor-General*, for the Plaintiff, offered to withdraw the exceptions, and pay the costs, without prejudice to filing exceptions, if the demurrer should be allowed ; but insisted, that the consequence of taking exceptions is not, that the demurrer shall stand allowed. Lord *Redesdale* certainly states that to be the consequence (*Mif.* 252) ; but cites no authority. The case of *The London Assurance v. The East India Company* (3 *P. Will.* 325) does not apply to this point ; determining only, that exceptions cannot be taken, until the demurrer is disposed of : Lord *Redesdale's* proposition [supposing the exception to be regular. The other Books of Practice do not support that proposition. Such a rule would be hard upon the Plaintiff ; as regularly the Defendant should himself set down the demurrer.

He is bound to enter it with the Register within a certain time. If he neglects to do that, the Plaintiff may set it down.

[86] Mr. Owen, in reply to the proposal to waive the exceptions without prejudice, referred to *Dolder v. The Bank of England* (10 Ves. 284); to shew the strictness as to permitting any amendment of Exceptions, unless a case of clear mistake; and that must be rectified upon the Record.

Nov. 4th. The Lord Chancellor [Erskine]. The case of *The London Assurance v. The East India Company* (3 P. Will. 325) is not inconsistent with Lord Redesdale's proposition; which appears to me to be supported also by the reason of the thing. The rule, established in that case, that the Plaintiff cannot except pending the demurrer, might have reference to the understood practice of the Court, that he could not except without admitting the validity of the demurrer; the foundation of which seems to be, that dealing with the answer, as if it was proper, except as to the particular subject of exception, is an implied admission of the validity of the demurrer.

But in this case the Plaintiff is entitled, according to the offer he has made, to withdraw the exceptions, paying the costs; and if the demurrer shall be allowed upon argument, he may again except; and put in the same exceptions. The principle is clear upon *Dolder v. The Bank of England*: the exceptions having been taken upon a mistake as to the practice, without any intention of waiving the demurrer. The mode, in which the error is to be corrected, should be in the [87] discretion of the Court. Amendment may be permitted; if it can be done without disfiguring the Record: but if the amendments must be so considerable as to blot and deface the Record, as in that instance, exceptions taken from one Bill instead of another, the Record should be taken off the file; and a new Record put upon it.

The Motion was therefore refused: the *Solicitor-General* undertaking to withdraw the Exceptions, and pay the costs.

WHITE v. WILSON. Aug. 5th, Nov. 12th, 1806.

[See *Wilson v. Beddard*, 1841, 12 Sim. 32; *Waters v. Waters*, 1848, 2 De G. & S. 619; *M'Gregor v. Topham*, 1850, 3 H. L. C. 154.]

Heir at Law, Defendant, desiring an Issue upon a Will in which he failed, entitled to his costs in Equity. No costs on either side as to the Issue; ordered to pay Costs of a groundless Motion, for a New Trial.

The Bill in this cause was filed by devisees under the Will of Lord *Chedworth*, dated in 1804, to have the Will established, and the trusts carried into execution. An issue, *Devisavit vel non*, was desired by the heirs at law, suggesting incompetency in the testator. Upon the trial of that issue in the Court of King's Bench, a verdict was found, establishing the Will upon very clear and strong evidence of capacity, as to the conduct of the testator; particularly as a Magistrate, acting as Chairman at the Quarter Sessions; and in the House of Lords; opposed only by some circumstances of eccentricity, and singularity in dress; which came out principally upon the cross examination: the heir examining only one witness. A motion was made by the heir for a new trial upon a suggestion of the expectation of farther evidence; and an affidavit by Dr. Parr; expressing his opinion, that the testator had not been of a perfectly sound mind. [88] from a propensity to insanity, perhaps subsisting from his birth, and promoted by certain circumstances of his life. On the other side several letters from Dr. Parr to the testator were produced, consulting his Lordship upon subjects of literature, expressing in strong terms an opinion of his good sense and talents; and in one instance recommending a clergyman for a living in his Lordship's gift; the offer of which Dr. Parr declined for himself.

Mr. Perceval, Mr. Richards, and Mr. Leach, in support of the Motion for a new trial, observed, that, if the directions should be given upon this verdict, the effect would be a perpetual injunction after a single trial; though farther evidence was expected; and the right could never be bound by a single ejectionment.

The Attorney-General [Piggott], the *Solicitor-General* [Romilly], Mr. Fonblanque, Mr. Bell, and Mr. Whishaw, opposed the Motion.

The Lord Chancellor [Erskine]. I should be very sorry to find a rule in this Court,

that there must be a second trial of an issue if desired, without any ground laid for it. The rule upon this subject of lunacy has never been so distinctly stated as by Lord *Thurlow* in the case of *The Attorney-General v. Parnter* (3 Bro. C. C. 441): viz. where the party has ever been subject to a Commission, or to any restraint, permitted by Law, even a domestic restraint, clearly and plainly imposed upon him in consequence of undisputed insanity, the proof, shewing sanity, is thrown upon him: on the other hand, where insanity has not been imputed by relations or friends, or even by common fame, the [89] proof of insanity, which does not appear to have ever existed, is thrown upon the other side; which is not to be made out by rambling through the whole life of the party; but must be applied to the particular date of the transaction. A deviation from that rule will produce great uncertainty.

In such a case as this therefore it must be shewn, that a man, exercising all these great public duties, which it was proved this testator did exercise, had nevertheless a morbid image in his mind, upon a particular subject, so wide from sound understanding and clear reason, the distinction of a sound mind, that he ought not to be considered as in that state. In my experience I know only one instance of a verdict of lunacy under such circumstances; which is the case of Mr. *Greenwood* (cited 3 Bro. C. C. 444, *Attorney-General v. Parnter*); who was bred to the bar; and, as Lord *Chedworth* did, acted as Chairman at the Quarter Sessions: but, becoming diseased, and receiving in a fever a draught from the hand of his brother, the delirium, taking its ground then, connected itself with that idea; and he considered his brother as having given him a potion, with a view to destroy him. He recovered in all other respects: but that morbid image never departed; and that idea appeared connected with the Will; by which he disinherited his brother. Nevertheless it was considered so necessary to have some precise rule, that, though a verdict had been obtained in the Court of Common Pleas against the Will, the Judge strongly advised the Jury to find the other way; and they did accordingly find in favour of the Will. Farther proceedings took place afterwards, and concluded in a compromise.

[90] But is this a case of that sort? Is there any evidence of a morbid image in the mind of this testator, connected with this Will, or at any other period? On the contrary, all the evidence, witnesses of the highest character contradict that. Dr. *Parr* does not represent, that he was near the testator about the time he made his Will; but carries him back to the time he was at school at *Harrow*. The inclination of Courts of Justice is against permitting parties to beat up for evidence; especially in a case of fact mixed with opinion. No affidavit is produced, giving any reason to expect farther evidence, capable of shaking this verdict.

*Nov. 12th.* The application for a new trial having been refused, the cause came on for directions upon the equity reserved; when it was pressed, that the heir at law should pay the costs.

Mr. *Perceval*, Mr. *Richards*, Mr. *Leach*, and Mr. *Wetherell*, for the Heir at Law, insisted, that he ought to have costs; and if not, it was very difficult to state any ground, upon which he should pay costs. *Webb v. Claverden* (3 Atk. 424) was cited; and *Berney v. Eyre* (3 Atk. 387); in which case Lord *Hardwicke* states, that it must be a very strong case, that will induce the Court to give costs against him; as spoliation, or secreting the Will.

The *Attorney General* [Piggott] in Reply. The heir must be brought before the Court; that the Will may be established. In *Berney v. Eyre* it is laid down, that even upon a bill *in perpetuum rei memoriam* he [91] may cross-examine; and always has his costs of course down to that period. If he examines witnesses upon his part, the costs of that are refused to him. If he desires a trial at law, the ground must be considered. In that case also it is laid down, that, if the heir sets up insanity, and fails, he shall not have his costs.

In this instance the heir set up insanity; and has failed. The costs at law, it is agreed, are in the discretion of the Court. The question is, whether he had any probable ground for disputing the capacity of the testator to make a Will. In such a case, if the heir is not compelled to pay costs, it will establish a rule, that in no future case, however remote or indifferent the heir may be, however wantonly he may set up the pretence of insanity, except in the case of personal misconduct, shall he pay the costs, to which he may in that way put the party.